

বাংলা-দশ সুপ্রীম-কার্ট

হাই-কার্ট বিভাগ

আপীল সম্পর্কিত

-ফৌজদারী

-জলা: **Bogura**

498

-ফৌজদারী কার্যবিধি আই-নর ৪৩৫ ধারার অধী-নর রিভিশন
নং**Md. Abdur Razzak Nilu,**

আ-বদনকারী

মাধ্যম

Mr. Md. Sultan Mahmud, Advocate

বনাম

The State

Ms. Yesmin Begum Bithi, D.A.G along with

Mr. Anichur Rahman, A.A.G

Mr. Syed Bashir Hossain Chowdhury, A.A.G.

প্রথম আদালত

ম্যাজিস্ট্রেট,

তারিখ

২০

শাস্তি ও দন্ডাদেশ

Present

Mr. Justice Md. Rezaul Haque

and

Mr. Justice Md. Khairul Alam

আপীল আদালত

তারিখ

২০

কাগজপত্র বা আদেশের ক্রমিক নং	তারিখ	-নাট এবং আ-দশ	দ্বাক্ষর
	<u>29.01.2024</u>	Heard the learned Advocate and perused the petition for bail of the accused-petitioner under section 498 of the Code of Criminal Procedure and the documents annexed thereto. Let a Rule be issued calling upon the opposite party to show cause as to why the accused petitioner should not be enlarged on bail in Shahjahanpur Police Station Case No. 08 dated 09.12.2023 Corresponding to G.R No. 442 of 2023, under Table 8(Kha) of Section 36(1) of the Madok Drabbya Niontran Ain, 2018, now pending in the Court of Chief Judicial Magistrate, Bogura and/or pass such other or further order or orders as to this Court may seem fit and proper.	

-নাট বা আ-দ-শর ক্রমিক নং	তারিখ	-নাট ও আ-দ-শ
		Mr. Md. Sultan Mahmud, the learned Advocate appearing on behalf of the accused petitioner has submitted that allegedly 05 grams of Heroin have been recovered from the possession of the accused petitioners and the accused petitioners have been languishing in custody since 09.12.2023 and there is no certainty as to when the trial will be commenced, accordingly, he has prayed for enlarge the petitioners on ad-interim bail. Learned Deputy Attorney General appearing on behalf of the State has opposes the prayer for bail. Considered the submission of the learned Advocate and perused the application. We found substance in the submission of the learned Advocate, thus, the prayer is allowed. Let the accused petitioner Md. Abdur Razzak Nilu, son of late Ramzan Molla, be enlarged on ad-interim bail till disposal of Rule on furnishing bail bond to the satisfaction of the Court of Chief Judicial Magistrate, Bogura. The Rule is made returnable within 4(four) weeks from date. The Petitioner Shall put in 2(two) sets of requisites within 7 days, for service of notice of the Rule upon the opposite party in normal course as well as by registered post with A/D as per HCD Rules. Office shall not issue any certified copy or other copy of this order to the petitioner unless requisites are put in (vide HCD Rules, Chapter IV Rule 3(6)). The Court below is at liberty to cancel the bail of the petitioner, if privilege of bail is misused by him in any manner in accordance with law.
		Kashem/B.O

দ্রষ্টব্যঃ কালো কালিতে অফিস নোটের একটি ক্রমিক নম্বর এবং লাল কালিতে কোর্টের আদেশের আরেকটি ক্রমিক নম্বর হইবে।
নং সপম (বাঃ বাঃ কোঃ)/ভেটিং/ফ-১১০/৮৫-৩৫৮৩